EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

DECISION

Application no. 60864/10
Davit CHANTLADZE
against Georgia

The European Court of Human Rights (Fourth Section), sitting on 30 June 2015 as a Committee composed of:

Paul Mahoney, *President,*
Nona Tsotsoria,
Faris Vehabović, *judges,*
and Fatoş Aracı, *Deputy Section Registrar,*

Having regard to the above application lodged on 3 September 2010,

Having regard to the declaration submitted by the respondent Government on 9 March 2015 requesting the Court to strike the application out of the list of cases and the applicant's reply to that declaration,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The applicant, Mr Davit Chantladze, is a Georgian national, who was born in 1965 and lives in Tbilisi. He was represented before the Court by Mr M. Sturua, a lawyer practising in Tbilisi.

2. The Georgian Government ("the Government") were represented by their Agent, Mr L. Meskhoradze, of the Ministry of Justice.

3. The facts of the case, as submitted by the parties, may be summarised as follows.

4. Between early April and June 2009, thousands of opposition supporters held street protests in various parts of Tbilisi, as well as in a few other major cities of the country, on a daily basis, demanding resignation of President Saakashvili and his Government. During that period, there were several incidents when the police used allegedly excessive force against demonstrators.

5. One of such incidents occurred in the evening of 6 May 2009, during a spontaneous protest which gathered hundreds of people, including the

applicant, in front of the main police station of Tbilisi. A situation escalated when one of the protesters climbed over the fence into the police compound, and, in reply, the riot police officers, who had been mobilised to protect the territory of the city's police headquarter, started firing from non-lethal riot guns into the angry crowd. As a result, many protesters, including the applicant, received bodily injuries of different gravity.

6. As confirmed by a medical certificate available in the case file, the applicant was hospitalised on the same day, 6 May 2009, with bleeding from the right eye. Eventually, despite the urgent medical intervention, the applicant lost his eye. The medical certificate disclosed that the injury had been caused by "the penetration of a plastic projectile into the orbit".

7. On 12 June 2009 the applicant requested the initiation of criminal proceedings for excessive use of force by the police during the dispersal of the demonstration on 9 May 2009.

8. Between July 2009 and March 2010, the applicant enquired about progress of the criminal investigation on a number of regular occasions, requesting, amongst other things, to be interviewed in relation to the incident of 9 May 2009, granted the status of victim and so on.

9. On 11 March and 6 April 2010 the Tbilisi City prosecutor's office acknowledged receipt of the applicants' enquiries and advised him, on the latter date, to apply to the Ministry of the Interior instead who appeared to be in charge of the investigation.

10. On 12 April 2010 the applicant complained both to the Ministry of Justice, the agency supervising the prosecution authority at that time, and the Ministry of the Interior that it was unlawful for the latter authority to conduct an investigation into a possible abuse of power committed by its own agents, the riot police officers. No reaction followed.

THE LAW

11. On 27 October 2014 the application was communicated to the Government under Articles 3 and 11 of the Convention.

12. By letter dated 9 March 2015 the Government informed the Court that they proposed to make a declaration with a view to resolving all the issues raised by the application.

13. They acknowledged a violation of the applicant's rights guaranteed by Articles 3 and 11 of the Convention on account of shortcomings identified in the course of the investigation into the incident of 6 May 2009 which entailed the applicant's injury.

14. To remedy the above-mentioned breaches of the Convention, the Government undertook to assign the investigation of the incident of 6 May 2009 to "an independent investigative body (outside the system of the

Ministry of the Interior)" and to otherwise ensure "effective investigation of the applicant's allegations under close scrutiny of a competent high-rank public prosecutor and in full compliance with the principles established by the Court".

15. In addition, taking into account the factual circumstances of the case, the Government declared that they were ready to pay to the applicant 6,000 (six thousand) Euros to cover any pecuniary and non-pecuniary damage as well as costs and expenses, which will be converted into the national currency at the rate applicable on the date of payment, and will be free of any taxes that may be applicable. It will be payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

16. The Government invited the Court to strike out the application on the basis of the above-mentioned acknowledgments and undertakings.

17. On 8 April 2015 the Court received a letter from the applicant informing the Court that he fully agreed to the terms of the Government's declaration.

18. The Court finds that following the applicant's express agreement to the terms of the declaration made by the Government, the case should be treated, in substance, as a friendly settlement between the parties. It therefore takes note of the terms of this friendly settlement. The Court is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no reasons to justify a continued examination of the application.

19. In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases pursuant to Article 39 of the Convention.

Done in English and notified in writing on 23 July 2015.

Fatoş Aracı
Deputy Registrar

Paul Mahoney
President